



Republic of the Philippines
City of Baguio
SANGGUNIANG PANLUNGSOD
(CITY COUNCIL)

REGULAR SESSION HELD ON 24 SEPTEMBER 2018

PRESENT:

Hon. Edison R. Bilog, *City Vice-Mayor and Presiding Officer*;
Hon. Leandro B. Yangot Jr., *Member*;
Hon. Edgar M. Avila, *Member*;
Hon. Joel A. Alangsab, *Member*;
Hon. Faustino A. Olowan, *Member*;
Hon. Elmer O. Datuin, *Member*;
Hon. Maria Mylen Victoria G. Yaranon, *Member*;
Hon. Elaine D. Sembrano, *Member*;
Hon. Peter C. Fianza, *Member*;
Hon. Lilia A. Fariñas, *Member*;
Hon. Arthur L. Allad-iw, *Member*;
Hon. Benny O. Bomogao, *Member*;
Hon. Francisco Roberto A. Ortega VI, *Member*;
Hon. Michael L. Lawana, *Ex-Officio Member (President, Liga ng mga Barangay, Baguio City Chapter)*; and
Hon. Levy Lloyd B. Orcales, *Ex Officio Member (President, Pederasyon ng mga Sangguniang Kabataan, Baguio City Chapter)*.

ABSENT:

None.

*Authored by Hon. Vice-Mayor Edison R. Bilog,
Hon. Leandro B. Yangot Jr.,
Hon. Edgar M. Avila,
Hon. Joel A. Alangsab,
Hon. Faustino A. Olowan,
Hon. Elmer O. Datuin,
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Hon. Arthur L. Allad-iw,
Hon. Benny O. Bomogao,
Hon. Francisco Roberto A. Ortega VI,
Hon. Michael L. Lawana,
Hon. Levy Lloyd B. Orcales; and
Based on the report and recommendation of the
Committee on Social Services, Women and Urban Poor.*

ORDINANCE Numbered 120
(Series of 2018)

THE ESTABLISHMENT OF VIOLENCE AGAINST WOMEN AND THEIR CHILDREN (VAWC) DESKS IN THE 128 BARANGAYS OF BAGUIO CITY, AND PROVIDING GUIDELINES THEREOF.

Explanatory Note

Pursuant to Department of the Interior and Local Government (DILG) Memorandum Circular 2014-80, all Provincial Governors, City and Municipal Mayors, the ARMM Governor and DILG Regional Secretary, DILG Regional Directors/Field Officers and others concerned were directed to provide the mechanics on the conduct of Child-Friendly Local Governance Audit and to institute an audit system for measuring local governance performance in the delivery of services that would generate positive results and promote the welfare of children relative to the 2014 Child-Friendly Local Governance Audit.

Among the Assessment Criteria provided by the Memorandum Circular, is the presence of an ordinance in their respective area/jurisdiction establishing Barangay Violence Against Women and their Children (VAWC) Desks.

NOW, THEREFORE, on motion of Hon. Fariñas, Hon. Alangsab and Hon. Allad-iw, seconded by Hon. Yangot and Hon. Orcales,

BE IT ORDAINED BY THE SANGGUNIANG PANLUNGSOD (CITY COUNCIL) IN SESSION ASSEMBLED THAT:

SECTION 1. TITLE – This Ordinance shall be known as “ESTABLISHMENT OF BARANGAY’S VIOLENCE AGAINST WOMEN AND THEIR CHILDREN DESKS ORDINANCE IN THE CITY OF BAGUIO”.

SECTION 2. DEFINITION OF TERMS – For purposes of this ordinance, the following shall be defined, as follows:

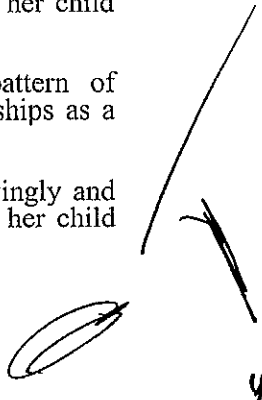
A. Violence Against Women and Their Children (VAWC) – refers to any act or a series of acts committed by any person against a woman who is his wife, or against a woman with whom the person has or had a sexual dating relationship, or with whom he has a common child, or against her child whether legitimate or illegitimate, within or without the family abode, which result in or is likely to result in physical, sexual, psychological harm or suffering, or economic abuse including threats of such acts, battery, assault, coercion, harassment or arbitrary deprivation of liberty. It includes, but it not limited to, the following acts:

1. Physical Violence – refers to acts that include bodily or physical harm;
2. Sexual Violence – refers to an act which is sexual in nature, committed against a woman or her child. It includes, but is not limited to:
 - a. Rape, sexual harassment, acts of lasciviousness, treating a woman or her child as a sex object, making demeaning and sexually suggestive remarks, physically attacking the sexual parts of the victim’s body, forcing her/him to watch obscene publications and indecent shows or forcing the woman or her child to do indecent acts and/or make films thereof, forcing the wife and mistress/lover to live in the conjugal home or sleep together in the same room with the abuser;
 - b. Acts causing or attempting to cause the victim to engage in any sexual activity by force, threat of force, physical or other harm or threat of physical or other harm or coercion; and
 - c. Prostituting the woman or child.
3. Psychological Violence – refers to acts or omissions causing or likely to cause mental or emotional suffering of the victim such as but not limited to intimidation, harassment, stalking, damage to property, public ridicule or humiliation, repeated verbal abuse and mental infidelity. It includes causing or allowing the victim to witness the physical, sexual or psychological abuse of a member of the family to which the victim belongs, or to witness pornography in any form or to witness abusive injury to pets or to unlawful or unwanted deprivation of the right to custody and/or visitation of common children; and
4. Economic Abuse – refers to acts that make or attempt to make a woman financially dependent which includes, but is not limited to the following:
 - a. Withdrawal of financial support or preventing the victim from engaging in any legitimate profession, occupation, business or activity, except in cases wherein the other spouse/partner objects on valid, serious and moral grounds as defined in Article 73 of the Family Code;
 - b. Deprivation or threat of deprivation of financial resources and the right to the use and enjoyment of the conjugal, community or property owned in common;
 - c. Destroying household property; and
 - d. Controlling the victims’ own money or properties or solely controlling the conjugal money or properties.

B. Battery – refers to an act of inflicting physical harm upon the woman or her child resulting to the physical and psychological or emotional distress;

C. Battered Woman Syndrome – refers to a scientifically defined pattern of psychological and behavioral symptoms found in women living in battering relationships as a result of cumulative abuse;

D. Stalking – refers to an intentional act committed by a person who, knowingly and without lawful justification follows the woman or her child or places the woman or her child under surveillance directly or indirectly or a combination thereof;

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E. Dating Relationship – refers to a situation wherein the parties live as husband and wife without the benefit of marriage or are romantically involved over time and on a continuing basis during the course of the relationship. A casual acquaintance or ordinary socialization between two individuals in a business or social context is not a dating relationship;

F. Sexual Relations – refers to a single sexual act which may or may not result in the bearing of a common child;

G. Safe Place or Shelter – refers to any home or any other suitable place the resident of which is willing temporarily to receive the victim;

H. Children – refers to those below eighteen (18) years of age or older but are incapable of taking care of themselves as defined under Republic Act No. 7610 otherwise known as “*Special Protection of Children Against Abuse, Exploitation and Discrimination Act*”. It includes the biological children of the victim and other children under her care; and

I. VAWC Desk – a facility that would address VAWC cases in a gender-responsive manner, managed by a person designated by the *Punong Barangay*. It is situated within the premises of the barangay hall. In the absence of a barangay hall, the VAWC Desk shall be established within the premises where the *Punong Barangay* holds office.

SECTION 3. ESTABLISHMENT OF VAWC DESK IN EVERY BARANGAY -

3.1. Setting up the VAWC Desk – the *Punong Barangay* shall designate an area within the barangay hall for the VAWC Desk. He or she shall provide for the necessary furniture and fixtures such as, but not limited to, table, chairs, separate filing cabinet and log book for record-keeping of cases. Likewise, the *Punong Barangay* shall ensure the confidentiality of the case and privacy and safety of the victim-survivor.

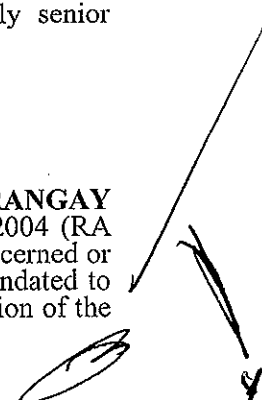
3.2. Designation of VAWC Desk person – the *Punong Barangay* shall designate a VAWC Desk person who is trained in gender-sensitive handling of cases; preferably a woman *Barangay Kagawad* or woman *Barangay Tanod*. In cases where there are no trained personnel, the *Punong Barangay* shall ensure that the person assigned shall undergo basic gender sensitivity training and orientation on anti-VAWC laws.

The necessary trainings for the officials for the operation of VAWC Desk for all barangay officials in the City of Baguio shall be conducted by the City Social Welfare and Development Office (CSWDO) and the City Budget Office (CBO). Fifteen (15) days from the conduct of the training, a written report shall be submitted by the CSWDO to the City Mayor.

3.3. Functions of the Barangay VAWC Desk – The VAWC Desk shall perform the following tasks:

1. Respond to gender-based violence cases brought to the barangay;
2. Record the number of gender-based violence handled by the barangay and submit a quarterly report on all cases of VAWC to the Department of the Interior and Local Government-Baguio City Field Office and to the City Social Welfare and Development Office;
3. Keep VAWC case records confidential and secured, and ensure that only authorized personnel can access it;
4. Assist victims of VAWC in securing Barangay Protection Order (BPO) and access necessary services;
5. Develop the Barangay’s gender-responsive plan in addressing gender-based violence, including support services, capacity building and referral system;
6. Coordinate with and refer cases to government agencies concerned, nongovernment organizations (NGOs), institutions, and other service providers as necessary;
7. Address other forms of abuse committed against women, especially senior citizens, women with disabilities, and other marginalized groups;
8. Lead advocacies on the elimination of VAWC in the community; and
9. Perform other related functions as may be assigned.

SECTION 4. PROTOCOL IN HANDLING VAWC CASES AT THE BARANGAY LEVEL – The Anti-Violence Against Women and Their Children (VAWC) Act of 2004 (RA 9262) mandates the *Punong Barangay* or in his/her absence the *Barangay Kagawad* concerned or on duty to take immediate action upon being informed of a violent incident and is mandated to issue a Barangay Protection Order (BPO) on the date of filing after *ex parte* determination of the basis of application.

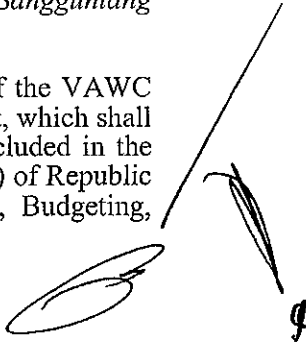


All forms of amicable settlement under the *Katarungang Pambarangay* such as mediation, settlement, conciliation, arbitration shall **not** apply to cases of VAWC. The following protocols shall be observed by the Barangay VAWC Desk person when responding to VAWC situations:

1. A VAWC (RA 9262) victim-survivor is accompanied by someone to the barangay or the victim herself goes to the barangay. Make the woman (and children, if applicable) comfortable in a safe and private room giving her water and other immediate needs, if any;
2. Assess the situation and get initial information to determine the risks on hand and if immediate medical attention is needed. If so, facilitate referral to the nearest medical facility;
3. After the victim-survivor has stabilized, assist the *Punong Barangay* or *Barangay Kagawad* in the conduct of an investigation in a gender-sensitive and non-judgmental manner in a language understood by her;
4. Inform her of her rights and the remedies available and the processes involved particularly in relation to the BPO. Assist her to file application, if she decides to have a BPO;
5. Record the incident using the National VAWC Documentation System barangay form;
6. If victim-survivor desires to be in a safe shelter, seek the assistance of the other Barangay Officials, *Barangay Tanod* or the police in getting her belongings and refer to a shelter, women's center or to the City Social Welfare and Development Office (CSWDO);
7. Assist the victim-survivor to file for a temporary protection order (TPO) or permanent protection order (PPO) with the nearest Family Court within 24 hours after issuance of the BPO, if the victim-survivor so desires or she applies directly for a TPO/PPO instead of a BPO;
8. Report the incident within four hours to the PNP and the CSWDO;
9. A victim-survivor of VAWC is reported by a community member;
10. Verify the information and if needed, seek assistance from the PNP;
11. Assess the situation and facilitate the rescue of the victim-survivor when necessary to ensure her safety, and when applicable the safety of her children;
12. Inform the victim-survivor about her rights and remedies available particularly the BPO and its processes. Assist her to apply for a BPO, if she so desires;
13. Refer victim-survivor for medical care and temporary shelter and other needs when needed based on the assessment done;
14. Record the incident using the National VAWC Documentation System barangay form;
15. If not done earlier, report the incident within four hours to the PNP and the CSWDO; and
16. For rape, trafficking in persons and other cases which do not fall under the jurisdiction of the barangay, assist the victim-survivor to file a complaint with the PNP Women and Children Protection Center or the National Bureau of Investigation (NBI).

SECTION 5. MONITORING AND REPORTING - Within six months from the issuance of this Ordinance, all Barangay Officials shall submit a report on the establishment of Barangay VAWC Desk to the City Social Welfare and Development Officer who shall collate the data and the same be submitted to the City Mayor and copy furnished the *Sangguniang Panlungsod* (City Council).

SECTION 6. FUNDING - The cost of the establishment and operations of the VAWC Desk shall be charged under the Barangay's Gender and Development (GAD) budget, which shall be at least five percent (5%) of their budgetary allocation. As such, it shall be included in the annual GAD Plans and Programs of the barangays, in accordance with Section 36 (a) of Republic Act No. 9710 [AN ACT PROVIDING FOR THE MAGNA CARTA OF WOMEN] (Planning, Budgeting, Monitoring and Evaluation for GAD).



SECTION 7. **SEPARABILITY CLAUSE** – If any provision or section of this Ordinance, or the application thereof to any person or circumstance is held invalid, the other provisions or sections of this Ordinance and the application of such circumstance shall not be affected thereby.

SECTION 8. **REPEALING CLAUSE** – All prior Ordinances, Executive Orders, Administrative Orders, Rules and Regulations, or part/s thereof that are inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 9. **EFFECTIVITY CLAUSE** – This Ordinance shall take effect in accordance with the Local Government Code of 1991, as amended.

Passed.

Hon. Sembrano and Hon. Ortega VI were out of the Session Hall during the deliberation and voting on the matter.

CERTIFIED CORRECT:


EDISON R. BILOG
*City Vice-Mayor and
Presiding Officer*

OCT 03 2018

Attested:


BRENNER L. BENGWAYAN
Secretary to the Sanggunian

APPROVED:


MAURICIO G. DOMOGAN
City Mayor
04 OCT 2018


JONATHAN M. FONTANOS